
Journal

1982 PLD 512

Court

LAHORE HIGH COURT

Date

2016-10-29

Appeal No.

Judge

JAVID IQBAL

Parties

KHADIM ALI AND 3 OTHERS (PETITIONERS) VERSUS THE STATE AND ANOTHER
RESPONDENTS

Lawyers

KH. Z. H. TAHIR FOR PETITIONERS.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 561-A

Judgment

Orders [11-5-1281].--Learned counsel for the petitioners has impleaded Muhammad Ashraf, son of Rashid Ahmad, Caste Arain, resident of Mandi Vattoki, at present, resident of Faizpur Khurd, Police Station Ferozewala, District Sheikhpura, as respondent.

Muhammad Ashraf respondent is real brother of petitioner Nos. 1 and 4, cousin of petitioner No. 2 and sala of petitioner No. 3.

The background is that there was some land belonging to Muhammad Ashraf respondent about which it is alleged that agreement to sell was made by Muhammad Ashraf respondent in favour of petitioner No. 1 and on which petitioners Nos. 2 and 3 were signatories and it was made in the house of petitioner No. 4. Muhammad Ashraf respondent's allegation is that his signatures had been forged on the said document and he was never party to the same. On the other hand, the petitioners' allegation is that Muhammad Ashraf respondent had signed the said agreement to sell in favour of petitioner No. 1. ' In this background petitioner No. 1 had filed a civil suit for specific performance as against Muhammad Ashraf respondent on 3-1-1978 which is at present pending in the Court of Shabbir Hussain Chattha, Civil Judge, Ferozewala. Muhammad Ashraf respondent submitted his written statement in that matter on 3-2-1978. Thereafter, Muhammad Ashraf respondent instituted a civil suit as against all the petitioners for cancellation of the disputed agreement to sell as well as permanent injunction. This suit was filed by him on 30-3-1978. Thereafter, in order to harass the petitioners, it is contended that Muhammad Ashraf respondent made an application to the D. S. P., Ferozewala, on 15-4-1978 as against the present petitioners due to which a case has been registered against them at Police Station Ferozewala, under section 420/468/471, P. P. C. on 15-5-1978. Thus, Muhammad Ashraf respondent according to learned counsel has started criminal proceedings against the present petitioners in order to harass them although civil litigation between the parties is already pending in respect of the same matter. It is prayed that either the criminal litigation should be stayed until the disposal of the civil litigation between the parties or criminal proceedings be quashed.

2. Admit. Notice to Muhammad Ashraf respondent.

3. Summon the record of the case titled State v. Khadim Ali and others under section 420/468/471, P. P. C. pending at present in the Court of Ch. Muhammad Ashraf, M. I. C., Ferozewala, District Sheikhpura, so as to reach this Court within three weeks.

4. Since the matter involved in this case is very short, the Office is directed to fix it before me on the 27th of June, 1981.

Kh. Z. H. Tahir for Petitioners.

Malik Abdur Rahman for the State.

[5-10-1981].-The legal question in this case is as to whether or not the criminal proceedings be stayed until the determination of the civil litigation between the parties. At present two cross cases between the parties are being contested before the Civil Judge. There is an agreement to sell alleged to have been made between the parties. The petitioners have instituted a suit for specific performance on the basis of the alleged agreement to sell whereas Muhammad Ashraf respondent has instituted a suit for cancellation of the said agreement to sell because according to him it is a forged document on which he had not tendered his signatures. Both these civil suits are pending in the Court of Mr. Shabbir Hussain Chattha, Civil Judge, Ferozwala. In the

meantime, Muhammad Ashraf respondent has got a case registered against the petitioners at Police Station Ferozewala under section 420/468/471, P. P. C. raising the allegation that the petitioners had committed forgery and that in this way criminal proceedings had been initiated against the petitioners at the instance of Muhammad Ashraf respondent. The petitioners have moved this petition under section 561-A, Cr. P. C. with the prayer that the criminal proceedings titled State v. Khadim Ali and others be quashed. But in my view it is not a case in which the criminal proceedings pending against the petitioners could be quashed. The only question which requires determination is as to whether or not they can be stayed pending the disposal of the civil litigation between the parties. This is essentially a legal question which has to be examined in the light of the facts of the present case. Learned counsel for the parties want a brief adjournment to prepare the legal point. Adjourned to the 25th of November, 1981.

Kh. Z. H. Tahir for Petitioners.

Malik Mehmood Majeed Khan for Respondent.

Malik Abdur Rahman for the State.

[25-11-1981].-In continuation of my orders dated 11-5-1981 and 5-10-1981 the parties have produced authorities in support of their arguments. Learned counsel for the petitioners relies on Muhammad Akbar v. The State and another It was held therein that normally criminal proceedings should not be postponed pending the disposal of civil litigation connected with the same subject-matter. But where it is clear that the [1]PLD 1968 S C 281 criminal liability is dependent upon the result of the civil litigation or is so intimately connected with it that there is a danger of grave injustice being done in the case if there be a conflict of decisions between the civil Court and the Criminal Court then in such event it is equally clear that the Criminal Court has not only the right to but should also stay its hands until the civil litigation is disposed of, for, it is not desirable that when the title to the property itself is in dispute, the Criminal Courts should give a finding in respect of the same question. This was not a case in which the criminal litigation was being stayed by an order of the civil Court, but this was a case where the High Court, exercising the inherent criminal jurisdiction under section 561-A of the Code of Criminal Procedure, had in the interests of justice ordered the stay of the criminal proceedings. It was held that the Court had exercised its jurisdiction upon sound judicial considerations. On the other hand, learned counsel for Muhammad Ashraf respondent has placed reliance on Syed Muhammad Ahmad v. The State In that case it was held that there was no invariable rule that criminal proceedings be postponed pending disposal of civil litigation. In that case the civil suit was long after criminal proceedings had started. It was held that the High Court was right in not staying criminal proceedings. In the present case the position is that the petitioners and Muhammad Ashraf respondent entered into an agreement to sell certain land. Under this agreement it is alleged that Rs. 15,000 was received by Muhammad Ashraf respondent from the petitioners and Rs. 3,000 was the remaining balance amount. The land involved in the sale was about 27 kanals. Thereafter, since Muhammad Ashraf respondent refused to accept the balance, the petitioners instituted a suit for specific performance on the basis of the agreement to sell. On the other hand, Muhammad Ashraf respondent instituted a suit for the cancellation of the said agreement because according to him it was a forged document on which he had not tendered his signatures. The contention of Muhammad Ashraf respondent is that the land in question was valued at lacs of rupees and he could not have agreed to sell it at a meagre amount of Rs. 18,000. In any case the civil litigation in the form of cross suits between the two parties had started in 1978. The petitioners had filed the suit for specific performance on 3-1-1978 whereas Muhammad Ashraf respondent had filed his suit for cancellation on 30-3-1978. Both these matters are at present pending in the Court of Mr. Shabbir Hussain Chattha, Civil Judge, Ferozewala. While the suits were pending, on 15-5-1978 Muhammad Ashraf respondent got a

case registered against the petitioners at Police Station Ferozewala under section 420/468/471, P. P. C. raising the allegation that the petitioners had committed forgery and that in this way criminal proceedings had been initiated against the petitioners at the instance of Muhammad Ashraf RaspoHhent. The petitioners have moved this petition under section 561-A, Cr. P. C. with the prayer that the criminal proceedings titled State v. Khadim Ali and others be quashed. On the other hand, learned counsel for Muhammad Ashraf respondent has vehemently argued that when two remedies are available to a party one civil and the other criminal, the party is at liberty to pursue both of them at the same time. It was in this connection that both the sides had produced relevant authorities of the Supreme Court on which they are placing reliance.

2. I have heard learned counsel for the parties and have also considered the authorities which have been cited by them. I am not inclined to quash the criminal proceedings as against the petitioners. However, the position 1972 S C M R 85 in this case is that the civil proceedings had started between the parties before the criminal proceedings had commenced and the subject-matter of the civil proceedings is the same as the allegation in the criminal proceedings. Furthermore, the subject-matter in the instant case which is pending before the civil Court requires determination and this determination would naturally be relevant so far as the criminal proceedings are concerned. I, therefore, order that the criminal proceedings as against the petitioners in the case titled State v. Khadim Ali and others be stayed till the civil litigation between the parties is disposed of. I further direct Mr. Shabbir Hussain Chattha, Civil Judge, Ferozewala before whom the two civil suits of the parties are pending at present to dispose of the same as expeditiously as possible when the Supreme Court has vacated the stay order which, I am told, has been issued in this case.

With these observations this petition is disposed of.

M Y_ M Petition disposed of.

easylaw Case No.

1103909

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